GAPWZ
versus
THE WATTLE COMPANY LIMITED

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 13 and 14 July 2026

OPPOSED APPLICATION

Mr *C Mukwena*, for the applicant
Ms *D Mutungura* with Mr *P Nyakureba*, for the respondent

MUZENDA J:

1. The applicant approached this court for the registration of an arbitral award, granted by the arbitrator at Mutare on 12 November 2013.
2. In opposing the registration, the respondent company raises a preliminary objection to the effect that there is no claim before this court. Th basis for the objection being that the arbitral award was not awarded in United States Dollars and hence there is no reason for the applicant claiming the same in hard currency. Respondent adds that if it is held by this court the claim sounding in United States Dollars is proper then SI 33 of 2019 would have adversely affected the amount of $95 322 and prayed for the dismissal of the registration with costs.
3. In response to the points *in limine* applicant avers that the preliminary objection lacks merit on the basis that what is important for this court is to decide whether applicant has met all the requirements for the registration of an arbitral award. To the applicant such an attack is not legally persuasive, they should be reserved for debate at the point of execution, respondent can do so on an appeal or review.

4. The requirements for registration of an arbitral award are crisply set out in the case cited by the applicant. *Ericson Mvududu* v *Agricultural Authority (ARDA)*[1] and applicant must satisfy the registering court that it is a party to the arbitral proceedings; the award relates to it and a copy of the arbitral award being presented for registration has been duly certified by the arbitrator in terms of the relevant statute and this would have met the expectations of ss 98(14) and 98(3) of the Labour Act. In opposing the registration respondent should prove the opposite of the three requirements set out hereinabove.
5. Applying the above law to the preliminary objections raised by the respondent, my view is that respondent failed to prove the opposites of the requirements, the issue of currency does not appear on the requirements for registration and accordingly the points *in limine* lack merit and they are dismissed.
6. On the merits of the application, in the matter of *Vasco Olympio & Ors* v *Shonet Industrial Development*[2] a registering court is required to be satisfied that the award was competently awarded by an arbitrator, that it sounds in money, that the award is still extant and has not been set aside on review or appeal, and further that the parties are the subject of the arbitral award and that the award bears an authentic certificate given under the hand of the arbitrator validating the arbitral award.
7. It is safe to add that given the inflationary trend within the versatile economic environment, a court has to also look at the legislative financial legal changes that had been promulgated since the award. The requirement of the award sounding in money relates in my view to the operative currency attaining in the country in order to ensure that once registered the order of the court is executable. A court cannot grant a registration of an award order which becomes inexecutable, vague and open to further litigation even in the absence of an application for review or of an appeal. Given an admitted fact by the applicant that since 2013, the date of the award, a lot of financial earthquakes occurred leading to the introduction of SI 33 of 2019, a registration court for an award should not be blind to the existence of SI 33 of 2019.

[1] HH 286/2011
[2] HH 191/2012

8. In the matter of *Zambezi Gas Zimbabwe (Private) Limited* v *N. R barber (Private)Limited & Anor* SC 437/19 it was held:

   "*The liabilities referred to in s 4(1)(d) of SI 33/19 can be in the form of judgment debts such liabilities amount to obligations which should be settled by judgment debtor. In interpreting s 4(1)(d), regard should be had to assets and liabilities which existed immediately before the effective date of the promulgation of SI 33/19. The value of the assets and liabilities should have been expressed in United Sates Dollars immediately before 22 February 2019 for the provisions of s 4(1)(d) of SI 33 of 2019 to apply to them.*"

9. I am persuaded by the respondent's contention that the arbitral award falls within the ambit of SI 60 of 2024 as a debt which already existed prior to the instrument's promulgation. I also make a finding that the arbitral award of USD95 322 is a debt which becomes a subject of consideration in interpreting SI 33/2019 moreso it fits into a genre of a judgment debt pronounced by an arbitrator. The duty of computation for the present value of money arising out of an arbitral award which has been presumably affected by subsequent legislative changes obviously falls on the shoulders of the applicant. It is up to the applicant to approach relevant courts to compute or declare an updated figure to reflect the current monetary value as at the date of registration given the effects of SI 33 of 2019 as well as SI 60 of 2024. Applicant cannot just approach a court for registration of such a long outstanding arbitral award granted twelve (12) years ago.
10. Applicant failed to establish what "money" as of today it is seeking to be registered. This is moreso in view of the fact that the purpose of registering an award is to enable an applicant to obtain an order for purpose of execution. From November 2013 the USD 95 322 has been affected in value and the order once registered would look as if that amount has never grown in value or affected by the monetary policy changes like SI 33 of 2019. The application for registration is struck off till applicant has satisfied this court on the amount of money to be accorded registration in view of the financial legislative changes brought about after the award in 2013.
11. The respondent prayed for costs at legal practitioner client scale heavily relying on the points *in limine*. The preliminary points were dismissed. Applicant had established all the requirements expected of registering an award but failed on the issue of the amount to be registered. Not all refusal of registration of awards attracts punitive costs. The court did not hear respondents alleging recklessness on the part of the applicant in approaching the court.

There is no sound argument brought up by the respondent to persuade this court to award it costs on a higher scale.

12. Accordingly, the following order is granted:

Application for registration is struck off the roll with costs at an ordinary scale of party and party basis.